

No. ALC/IESO/Cof Amdts/RGP/3923
Office of the Addl. Commissioner of Labour.
Bungalow No. 5, Mumbai Pune Road, Pune – 5.
Dated : 14th September 2001

To

The General Manager,
Bajaj Auto Ltd.,
Plot No. A-1, MIDC – Chakan,
Dist. Pune

Sub. : The Industrial Employment (Standing Orders) Act, 1946
Certification of Amendments under.....

Sir,

This refers to your application dated 24-3-2000 for Certification of amendments to the Model Standing Orders applicable to your industrial establishment.

I am forwarding herewith a copy of the certified amendments to the Standing Orders duly certified, authenticated after making the necessary modifications to the draft amendments as required under the provisions of Section 5 (2) of the said Act.

The order requiring the modification to the draft amendments, as provided under section 5 (2) of the said Act is recorded separately. A detailed order in this matter will follow in due course.

Please acknowledge the receipt.

Yours Faithfully,

Sd/-
(Ramchandra Patil)

Addl. Commissioner of Labour, Pune
Division, Pune and Certifying Officer
Under the Industrial Employment
(Standing Orders) Act, 1946, Pune.

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**Bajaj Auto Limited,
Chakan Division
Chakan - 410 505**

**Standing Orders for the employees doing Manual/Technical/Clerical/Supervisory work
at Bajaj Auto Ltd., Chakan
Pune - 410 505**

1) Application:

These orders shall come into force on **14th September 2001** and shall apply to all the Workmen doing Manual, Technical, Clerical and Supervisory work.

2) Definitions:

In these Orders unless there is anything repugnant in the subject or context,

A) “Establishment” means Bajaj Auto Limited, Chakan, Dist. Pune, Maharashtra.

B) “Manager” means the person for the time being managing the establishment and includes anyone authorised to act on his behalf, such authorisation being notified to the Workmen by displaying it on the notice board of the establishment.

C) “Occupier” shall mean the same person as notified as per the provisions of the Factories Act, 1948.

D) Masculine includes feminine.

E) Singular shall imply the plural where relevant and vice-versa.

3) Classification Of Workmen:

Workmen shall be classified as:

- A. Permanent workmen
- B. Probationers
- C. Temporary workmen
- D. Casual workmen
- E. Apprentices
- F. Job trainees (learners) and
- G. Covenanted workmen

A. “Permanent workman” means a workman who has been employed on a permanent basis and who, having been made permanent by an order in writing by the Manager or any person authorised by him in that behalf.

B. "Probationer" means a workman who is provisionally employed to fill a permanent vacancy or post and who has not completed six months "uninterrupted" service in aggregate in that post and having completed six months, whose probation has been extended for a period not exceeding three months.

C. "Temporary workman" means a workman who is appointed for a limited period for work which is of an essentially temporary nature, or who is employed temporarily as an additional workman in connection with temporary increase in work of a permanent nature.

D. "Casual workman" means a workman who is employed for any work which is unforeseen or of unexpected nature and which is not likely to last continuously.

E. "Apprentice" means a person engaged under the Apprentices Act, 1961 and rules made thereunder and amended thereafter from time to time for a specific period as required by trade and whose conditions of apprenticeship are specified in the contract signed by him with the establishment.

F. "Job Trainee" (Learner) is a learner (under the establishment's scheme framed from time to time) who is paid monthly stipend during the period of his training which shall ordinarily be for twelve months but which may be extended, if necessary, for a further period of six months maximum depending on the progress of the trainee and the nature of the job he is engaged on as a trainee.

G. "Covenanted Workman" means a workman who is employed for a specific period for any reason whatsoever under covenant (agreement) of service and whose services automatically come to an end on the expiry of the period mentioned in the agreement.

Note :

The term "Workmen" includes Workmen of all types doing either manual, technical, clerical or supervisory work.

4. Definition Of Uninterrupted Service:

'Uninterrupted Service' means and includes service interrupted on account of any of the following reasons, namely:-

I. Sickness, as certified by an Insurance Medical Practitioner under the Employees' State Insurance Scheme or by a Registered Medical Practitioner acceptable to the establishment.

II. Accident to the Workman.

III. Authorised leave.

IV. Lay-off as defined in the Industrial Disputes Act, 1947, as amended from time to time.

V. Strike which is not illegal.

VI. Lockout.

VII. Cessation of work which is not due to any fault of the workman concerned.

Continuous Service – For computation of 240 days, absence without leave will be treated as interrupted period of service for the purpose of any law.

5. Conditions of Employment :

I. If a permanent workman is employed as a probationer in a new post, he may at any time during the probationary period be reverted to his old permanent post by an order in writing by the Manager.

II. Every probationer who has completed the probation period of 6 months or extension thereof, if any, in the post in which he is employed as a probationer shall be made permanent in that post by the Manager by an order in writing, provided the services of the probationer are found to be satisfactory. The Manager may, however, terminate his services before he completes the period of probation or extension thereof or, in the month in which he completes his probationary period or the extension thereof, if any, without assigning any reason therefor. A probationer shall be informed of his confirmation in writing within 3 months after completion of his probation period or extension period thereof.

6. Token of Identification/Ticket no./Address:

I. For each class of workman specified in Standing Order 3, a distinctive ticket or other means of identification bearing the name of the workman shall be provided.

II. Every workman shall be given an identity card /badge bearing

- A. His name and address
- B. The name of the department in which he is working
- C. His ticket number
- D. Designation
- E. Date of joining and
- F. His photograph
- G. Any other item which the manager feels necessary

III. It is necessary on the part of every workman to carry/wear/display this identity card/badge on his body while at work, when entering/leaving the establishment and he shall show the same whenever required to any person authorised by the Manager in this behalf.

IV. A Workman must notify to the establishment his local as well as permanent address on joining and change, if any, immediately. Any communication forwarded by the establishment to the last address on record shall be regarded as sufficient compliance for the purpose of giving any communication under these Standing Orders or any other law applicable.

V. The identity card must be surrendered when the workman leaves employment of the establishment.

7. Periods & Hours of work:

I. Notices showing the periods and hours of work for every class and group of Workmen in the establishment and for each shift shall be displayed on notice boards maintained for the purpose in the departments concerned and at the Time Keepers' Office or at or near the main entrance of the establishment.

II. Subject to the provisions of the Factories Act, 1948, or other legislation for the time being in force, the establishment reserves the right to require all or any number of its workmen to work overtime or on weekly holidays and paid holidays in accordance with the instructions/notices which may be issued / displayed from time to time. Such notices shall be displayed on the notice boards maintained for the purpose in concerned departments. No workman shall refuse to work overtime, if the exigency of work so demands.

III. Any workman required to work for a different period than what has been notified shall be notified to that effect as early as possible.

8. Notice showing Weekly Holiday, Compensatory Holiday and Payment of Wages:

Notices specifying -

A. Weekly holidays under the Factories Act, 1948.

B. The days of compensatory holiday, if any, under Section 53 of the Factories Act, 1948.

C. Those days to be observed by the establishment as holiday with or without pay

D. The days on which wages are to be paid

E. Wage rates as applicable from time to time

shall be displayed on the notice boards at the Time Keepers' Office or in the departments in which the concerned workmen are working.

9. Productivity:

All the workmen working on production jobs will give production as per the norms fixed by the establishment from time to time. The workmen shall not earn wages on the principle of 'No Work No Wage' in the event they fail to discharge the responsibility and/or do not carry out the work entrusted to them.

10. Payment of Unclaimed Wages:

Any wages due to a workman but not paid on the pay day notified, on account of being unclaimed, will be paid by the establishment on as unclaimed wage pay day twice in each month notified to the workmen and following the day on which a substantiated claim was presented by the workmen or, on his behalf, by his legal representative, provided that such

claim is submitted within three years from the date on which the wages become due to the workman.

11. Shift Working :

I. (A). More than one shift may be worked in a department or a section at the discretion of the Manager.

(B) If more than one shift is worked in the establishment , workmen shall be liable to be transferred from one shift to another .

(C) Whenever an additional shift is started or shifts are re-started or discontinued or altered, seven days notice shall, unless the circumstances are beyond the control of the Manager, be given. This , however, will not apply to Workmen required for emergency off-day working or for work, such as maintenance, water supply, stores, sanitation, transport and departments having continuous operations and other departments of similar nature. However, as a result of the discontinuance of a shift if any permanent workman is likely to be discharged, such notice, as far as practicable, be of one month and where it is not practicable , wages in lieu of such notice period shall be given.

(D). Where workmen are to be discharged or re-employed after discharge, regard shall be given to their length of service in the occupation concerned and in the establishment; those with the shortest term of service being discharged first, those with the longest service, being re-employed first.

(E) While restarting a discontinued shift, notice thereof shall be given either in a newspaper having wide local circulation or by letters to the individual workmen concerned. If a workman discharged as a result of discontinuance of the shift , presents himself on the appointed day specified in the said notice shall be given preference for re-employment.

II .The Manager may close down any department or section of a department at any time with 15 days notice to the workmen. However, the whole establishment shall not be closed without giving one months' notice for the proposed closure.

III. The Manager may give a clear 7 days public notice before reopening such department or restarting the establishment in a newspaper having wide local circulation or by letters to individual workmen concerned.

IV .Notice of-

A. Starting , restarting, alteration and discontinuance of shift working

B. The closure and re-opening of a department or section of a department and

C. The closure and reopening of the establishment

shall generally be displayed in the Time Keepers' Office or near the main entrance of the establishment and also in the department concerned.

V. On the re-opening of a department, or section of an establishment or restarting of a shift, as the case may be, preference for employment will be given to the workmen whose services were terminated on account of closure, taking into consideration the length of their service in the establishment and the department and the occupation concerned, provided that they present themselves for service at the latest by the day of re-opening of that department or section.

12.Attendance:

I. Every workman shall report for duty punctually and shall present himself at his assigned place of work at the starting time of the work after duly recording his attendance in a manner as may be prescribed and notified in this behalf by the Manager. Changes, if any, in this regard will be notified to the workmen by giving seven days notice.

II. Every workman shall punch his card in uniform at the time of commencement and close of the shift.

III. Workman shall not punch a card other than his own.

IV. Only under exceptional circumstances the Manager may allow a workman to join his duties late once in a week provided the late reporting time does not exceed five minutes. The workman reporting late on duty shall be shut out. Workmen thus shut-out shall be treated as absent.

V. Any workman found absent during working hours from his place of work without permission or without sufficient reason or refuses to work although present in his work place for any reason whatsoever, either alone or in a group in a concerted manner, shall be liable to be treated as absent for the period of his absence or refusal to work as the case may be and deductions from wages for the period of such absence or refusal shall also be made, as per the provisions of The Payment of Wages Act, 1936.

VI. The Manager shall also be entitled to take any other disciplinary action provided for under these Standing Orders or any other law or rule which may be applicable.

13. Interchangeability / Flexibility of Deployment:

A workman may be transferred according to exigencies of work from one shop or department or section to another or from one station to another or from one establishment to another under the same employer, provided that the wages and continuity of service of the workmen are not changed.

The workmen shall work in higher or lower grade jobs and in other trades as per the exigencies of work.

The workmen shall work on the trades other than the present grade as per the requirement of the Company. Whenever necessary, the Company will train such workmen in the new trade in the Company by internal faculty or by sending them to external training programmes. After training, such workmen shall give expected production in the new or old trade as per the Company's requirement.

Provided further that where the transfer involves moving from one state to another or one station to another, such transfer shall take place by giving reasonable notice to such workman and reasonable joining time will be allowed.

14. Promotion:

Promotion from one grade to another grade or from one category to another shall be at the absolute discretion of the management. Seniority, efficiency, vacancy of the post, qualification, trust-worthiness, good conduct, suitability for next assignment and over-all aspects of the workman's record in the past will be taken into account. Mere seniority in service will not be the sole criteria for promotion.

15. Medical Check-up:

Every workman shall be undergo a medical check-up/examination, as and when decided, by the Company's Medical Officer and the opinion of the said Medical Officer in this regard shall be treated as final.

16. Date of Birth :

Every workman shall be required to furnish a proof of his date of birth by way of SSC or School Leaving Certificate or a Certificate of Birth issued by local authority indicating his date of birth at the time of his appointment. The date of birth once recorded shall not be altered / changed.

17. Retirement:

Workman shall retire from the service of the establishment on reaching the age of 58 years but the company may at its sole discretion offer an extension of service beyond this age to any workman.

18. Leave with Wages etc.:

I. Leave with wages and allowances will be granted to all workmen in accordance with the provisions of The Factories Act, 1948 or as per the provisions of any agreement, settlement or award for the time being in force, or the contract of service.

II. Grant of leave to the workmen shall depend on the exigencies of work in the establishment and shall be at the discretion of the Manager.

III. A workman who desires to obtain leave of absence shall apply in writing to the Manager or any other officer appointed for this purpose in the prescribed proforma provided by the company. Such application for leave shall be made at least 7 days before the date from which leave is to commence, except in urgent cases or unforeseen cases when it is not possible to do so.

IV. The Manager or any other officer empowered by him in this behalf shall issue orders on such application within 3 days of the presentation of the application and in cases of an urgent

nature, immediately. If the leave asked for is granted, the leave pass showing the date from which the leave of absence commences and the date on which the workman will have to resume duty, shall be issued to the workman in the prescribed slip by the management.

V. If a workman after proceeding on leave desires an extension thereof, he shall make an application for the purpose to the Manager in writing by a Registered Letter or Telegram in sufficient time for a reply to reach him before the date on which he would start back to resume his duties. A written reply conveying the acceptance or refusal of extension of leave shall be sent to the workman at the address given by him if such reply is likely to reach him before the expiry of leave originally granted to him. The workman shall resume his duties on the date originally fixed unless an extension of leave is applied for and sanctioned.

VI. A workman remaining absent beyond the period of leave originally granted or subsequently extended shall be liable to lose his lien on his appointment unless he returns within 10 days of the expiry of the sanctioned leave and explains in writing to the satisfaction of the authority granting leave, his inability to resume his duty immediately on the expiry of his leave. A workman not reporting for duty within 10 days of the expiry of his leave shall be treated as having left the services of the company of his own accord on the date he was due to return to work provided an intimation to that effect has been sent by registered post to the workman at his last known address.

VII. The establishment will keep a register in which the name of such workman who loses lien is kept for re-employment, in future vacancy.

19. Casual cum Sick Leave :

I. All the workmen shall be entitled to casual cum sick leave during every calendar year. The leave shall be given on pro-rata basis.

II. Casual cum sick leave shall be non-cumulative.

III. The workman shall obtain prior sanction of the authority concerned before proceeding on leave. Grant of this leave shall depend on the exigencies of the company's work. In case of emergency or case of an urgent nature or unforeseen circumstances, the manager or the authorised person shall, as soon as may be practicable, be informed in writing through any person, of the absence from work and the probable duration of such absence.

IV. Holidays declared by the establishment and weekly holidays may be prefixed or suffixed to casual cum sick leave with prior permission of the Manager or anyone authorised by the Manager on this behalf.

V. Except for emergency reasons, casual cum sick leave shall be limited to three days at a time.

VI. The workmen shall not be allowed to avail of casual cum sick leave during their probation period except in cases of emergency. However, probation period shall be considered for the calculation of quantum of casual cum sick leave, that they will be entitled to.

VII. The management will require a workman applying for casual cum sick leave on the grounds of sickness to produce a Medical Certificate from a registered Medical Practitioner

acceptable to the establishment and where practicable will require the applicant to undergo a medical check-up by Company's Medical Officer. The decision of the Company's Medical Officer shall be final about the sickness requiring absence from work.

20. Entry and exit:

I. No workman shall enter or leave the premises of the establishment except by gates or gates fixed for the purpose.

II. The establishment shall not be responsible in any way for any damage/loss caused to any personal property brought inside the establishment by a workman with or without the permission of the Manager.

III. No workman shall leave the premises of the establishment of department concerned during working hours without obtaining a gate pass from the Manager or the person authorised by him.

21. Personal search:

Workmen are liable to be searched at the time of entering and leaving the establishment and at any other time while on duty by any person authorised by the Manager, provided -

A. No search shall be made except in the presence of atleast one other person.

B. No female worker shall be searched except by and in the presence of female.

22. Uniform :

The company will provide uniform to all permanent workmen periodically. Any workman reporting on duty without uniform will not be allowed to enter the premises of the establishment except with the special permission of the Manager. The workmen shall come to the factory in uniform from their residence and shall leave in uniform from factory to their residence.

The management will have the sole discretion to decide the type, quality and quantity of the uniforms to be provided to the workmen.

The workmen shall be responsible to maintain the uniform in good condition at their cost.

Any workman not found wearing uniform during working hours will be considered as having committed a misconduct under these Standing Orders and will be dealt accordingly.

23. Safety Shoes :

The company will provide a pair of safety shoes to all permanent workmen once in a year. The management will have the sole discretion to decide the type, quality and quantity of the shoes to be provided to the workmen.

The workmen shall be responsible to maintain the shoes in good condition at their cost.

Every workman shall be required to report for duty with safety shoes from his residence. Any workman reporting on duty without safety shoes will not be allowed to enter the premises except with the special permission of the Manager. Any workman not found wearing shoes during working hours will be considered as having committed a misconduct under these Standing Orders and will be dealt with accordingly.

24. Self-Inspection, House Keeping, Maintenance of Machine/s, Tools and Equipments:

The workmen shall be responsible for the quality of output from their work station . They shall measure the quality of out put from their work station before passing it on to the next station and follow all necessary instructions given to them either verbally or in writing by the Manager or any other Officer of the establishment from time to time.

The workman shall check the job/component produced by them as per the instructions and inspection plan. The workmen shall also check the job/component at the start of the shift, after rest interval, any interruptions due to breakdown of machines, power failure and due to any change etc., by means of inspection equipment provided.

In case any deviation is noticed the concerned workman shall be responsible for correction/s and shall ensure that job/ component are as per the quality standards laid down by the Company.

The workmen shall also be responsible for the housekeeping of their workplace, cleaning and maintenance of their tools and equipments. The workmen shall clean the machine, tools and their place of work before the end of every shift and shall ensure that machine, tools and work place are always neat and clean.

During the breakdown of machine/s, the workmen working on machine/s, shall also assist the maintenance crew.

25. Job Rotation /Training :

For the purpose of development of multi-skill and according to exigencies of work, a workman may be shifted form one machine to another machine, one shop to another shop, one department to other department either on shift to shift or day to day basis as per the discretion of the Manager.

The workmen shall operate more than one machine at a time and shall do the work of other grades or of lower and/or higher grade, as and when instructed by their superiors. The workmen shall also undergo in-house/outside training as and when need is felt by the management.

26. Block Closure :

In order to facilitate the carrying of overhauls/ preventive maintenance/ maintenance of the plant/ rearranging layout of the plant or for any reason whatsoever, the establishment may remain closed upto 7 days or for the days the need is felt. For this the balance casual cum sick leave or annual leave with wages of the workmen will be adjusted. This may be done twice in a year. If there is no leave to the credit of any workman, the days of block closure will be treated as authorised absence without pay of such workman.

27. Absence/ Refusal to Work.

If 10 or more workmen acting in concert & without giving 15 days notice to the management, absent themselves from work or being present at work place refuse to work, a deduction in respect of such workmen of 8 days wages (Basic+DA + all other allowances), besides the wages for the day/s or for the number of hours they have stayed in and /or refused to work will be made by the management without prejudice to the right of the management to take disciplinary action.

28. Stoppage of Work / Lay-off etc.

A.I. In the event of fire, catastrophe, breakdown of machinery, stoppage and or shortage of power or supply of water, an epidemic, civil commotion, go-slow and any other illegal and/or unjustified acts by the workmen, shortage of raw material , shortage of orders , temporary curtailment of production , accumulation of stocks or such other causes beyond the control of the Manager, the Manager may at any time without notice or compensation in lieu of notice stop any machine or department wholly or partially or the whole or part of the establishment and lay-off the workmen concerned for necessary period.

II. In the event of a stoppage under clause (I) during working hours , the workmen affected shall be notified as soon as practicable , when the work is likely to be resumed and whether they are to remain within or leave the establishment. The period of detention in the establishment shall not ordinarily exceed one shift from the commencement of the stoppage and the workmen so detained shall not be paid for such period of detention unless the period of detention in the establishment exceeds one shift.

III. Wherever practicable, reasonable notice shall be given of the resumption of normal work, and all the workmen laid off under these Standing Orders who present themselves for work, when work is resumed, shall be given preference for employment.

IV. All notices required to be given under this Standing Orders shall be displayed on Notice Board at the Time Keeper's Office or near the main entrance of the establishment.

Where a notice pertains to a particular department or departments only, it may be displayed in the department/s concerned only.

B. In cases where workmen are laid off under this Standing Orders they shall be considered as temporarily unemployed and the workmen will be entitled for lay-off compensation. When, however, workmen have to be laid off for a period exceeding 45 days, their services may be retrenched after giving them due notice or pay in lieu thereof as per law.

C. A workman laid off under this Standing Order for more than six days in a month may, on being laid off, leave his employment on intimation of his intention to do so.

D. Notwithstanding anything contained in this Standing Order, the rights and liabilities of establishment and workmen in so far as they relate to lay-off shall be determined in accordance with the provisions of Chapter V-A and V-B of The Industrial Disputes Act,1947 and the rules framed thereunder from time to time. Provided that nothing contained in the said chapters shall have effect to derogate any right which the workman has under The

Minimum Wages Act,1948 or any notification or order issued thereunder or any award for the time being in operation or any contract between the establishment and the workmen.

29. Suspension of Operations:

The Manager may, in the event of a strike or go-slow affecting either wholly or partially any section or department of the establishment or apprehension thereof, violence, destruction of company property or apprehension thereof and danger to the lives of other workmen working peacefully or supervisors or officers, vendors, suppliers, purchasers, visitors, etc. of the Company, close down either wholly or partially such section or department as well as any other section or department affected or likely to be affected by such events or suspend the operations in the whole establishment. The fact of such closure or suspension of operation as soon as practicable, be notified by notice displayed on the Notice Boards in the department concerned or in the Time Keepers' Office or at or near the main entrance of the establishment.

The workmen concerned shall also be notified by a general notice put up at the place where notices of closure or suspension of operations mentioned above are to be displayed, on the notice boards in the departments concerned or in the time keeper's office or at or near the main entrance of the establishment. The workmen concerned shall also be notified by a general notice put up at the place where notices of closure or suspension of operations mentioned above are to be displayed prior to the resumption of work as to when work will be resumed.

30. Termination /Dismissal /Resignation :

I. Subject to the provisions of The Industrial Disputes Act,1947, the employment of a permanent workman employed on rates other than the monthly rates of wages may be terminated by giving him 14 days notice or by 13 days wages (Basic + DA) in lieu of notice.

II. Save as otherwise provided in these Standing Orders a permanent workman employed on monthly rates of wages desirous of leaving the service may do so by giving the Manager one month (26 days) notice in writing or payment of one month's (26 days) wages (Basic + DA) in lieu of notice.

III. Where the employment of a workman is terminated under Standing Order 30(I) or where a workman leaves the service under Standing Order 30 (II) and such workman draws wages on piece rate basis, wages shall be computed on the average daily earnings of such workman for the days he actually worked during the previous wage period.

IV. The employment of a permanent workman employed on the monthly rates of wages may be terminated by giving him one month's notice or on payment of one month's wages (basic + dearness allowance) in lieu of notice.

V. The reason for the termination of service of a permanent workman shall be recorded in writing and communicated to him, if he so desires, at the time of discharge, unless such communication, in the opinion of the Manager, is likely to directly or indirectly lay any person open to civil or criminal proceedings.

VI. Save as otherwise provided in these Standing Orders, a permanent workman employed on the monthly rates of wages, desirous of leaving the service shall give in writing one

month's notice to the Manager of his intention to do so. However, it shall be the exclusive discretion of the Company to relieve him early if it is so desired.

VII. If a permanent workman leaves the service without giving notice, deductions on that account shall be made from his wages. He shall also be liable to be sued for damages.

VIII. If a workman is found at any time during his employment medically unfit permanently by the establishment's Doctor, he will be discharged from the services on medical grounds.

IX. Workman shall strictly follow, for maintenance of cleanliness, efficient and safe running and for better discipline in the establishment, the good practices which may be displayed on the Notice Board in the department as well as in the Time Keeper's Office from time to time.

X. All classes of workmen other than those appointed on a permanent basis may leave their service or their services may be terminated without notice or pay in lieu of notice, provided that the services of a permanent workman shall not be terminated as punishment unless he has been given an opportunity of explaining the charges of misconduct alleged against him in the manner as prescribed under the Standing Order no. 33.

XI. When the employment of any workman is terminated, the wages earned by him shall be offered to him before the expiry of the second working day from the day on which his employment is terminated. In the case of workman leaving the service, the payment of wages earned by him shall be made within seven days from the date on which he leaves/is relieved from the service. All other sums due to a workman shall be paid before the expiry of one month from the date he is relieved from the service.

XII. An order of termination of service shall be given in writing and shall be signed by the Manager or an officer authorised by him in this behalf. In cases of general retrenchment, closing down of departments or termination of service as a result of a strike or go-slow no such order shall be given to the individual workman, but a general notice to that effect shall be displayed on the notice board of the departments concerned.

31. Misconduct:

The following acts and commissions on the part of a workman shall amount to misconduct :

I. Wilful insubordination or insult or disobedience, whether or not in combination with another, of any lawful and reasonable order of a superior.

II. Going on an illegal strike or abetting, inciting, instigating or acting in furtherance thereof.

III. Wilful slowing down in performance of work, deliberately giving less production than the norms fixed by the establishment from time to time as determined by the establishment or abetment or instigation thereof.

IV. Theft, fraud or dishonesty in connection with the employer's business and /or property of the establishment or the theft of the property of another workman within the premises of the establishment or outside.

V. Taking or giving bribes or any illegal gratification.

VI. Habitual absence without leave, or absence without leave for more than ten consecutive days or over-staying the sanctioned leave without sufficient grounds or proper or satisfactory explanation.

VII. Late attendance on not less than four occasions within a month.

VIII. Habitual breach of any standing order or any law applicable to the establishment or any rules made thereunder.

IX. Collection of any money without the written permission of the manager, within or near the premises of the establishment.

X. Engaging in any kind of trade including lending and /or borrowing, within the premises of the establishment or soliciting for such a trade or activity.

XI. Drunkenness, riotous, disorderly or indecent behavior, use of abusive language, threatening, intimidating, causing any injury, forcing any workmen or supervisors, officer or their family members etc., to do any involuntary action or abetting or instigating others, whether employees of the establishment or not, or wrongfully interfering with the work of other workmen or supervisor, officer etc., Assault or threat of assault or instigation thereto either provoked or otherwise within the establishment or in the vicinity or outside the establishment if such an act has a rational connection and bearing with the employment in the establishment and adversely affecting the discipline /productivity / image and working of the establishment or the morale of its employees.

XII. Sleeping, loitering, idling or wasting time during working hours or being within the establishment after authorised hours of work without permission.

XIII. Commission of any act subversive of discipline and or good behavior whether such an act has been committed within the establishment or outside.

XIV. Habitual neglect of work, or gross or habitual negligence.

XV. Habitual breach of any rule/s or instructions for the maintenance and running of any department, or the maintenance of cleanliness of any portion of the establishment.

XVI. Habitual commission of any act or omission for which a fine may be imposed under The Payment of Wages act, 1936.

XVII. Canvassing for union / association or membership or the collection of union dues or any other type of collection within the premises of the establishment, except in accordance with any law or with the prior written permission of the Manager.

XVIII. Sabotage, damage, whether willful or due to irresponsible action or damage due to negligence or carelessness to work in process or to any property of the establishment or any instigation or abetment thereof.

XIX. Organising, holding, attending or taking part in any meeting within the establishment without the prior written permission of the manager.

XX. Disclosing to any unauthorised person any information in regard to costing, component process or drawings thereof or any other information of confidential nature or which may go against the interest of the establishment.

XXI. Gambling, playing cards etc., Within the premises of the establishment.

XXII. Smoking or spitting and committing nuisance on the premises of the establishment where it is prohibited or improper or at places other than those specifically meant therefor.

XXIII. Failure to observe safety instructions/rules/regulations notified by the Manager or failure to use safety device/appliances or interference with any safety device or equipment installed within the establishment.

XXIV. Distributing or exhibiting within the premises of the establishment hand bills, pamphlets, posters and such other things or causing to be displayed by means of signs or writing or other visual representation on any matter without previous sanction of the Manager.

XXV. Refusal to accept charge sheet, order or any other communication served in accordance with the Standing Orders.

XXVI. Refusal to work overtime necessary due to exigency of work whenever asked by the Superior/Manager or the officer nominated by the Manager/Superior.

XXVII. Knowingly and wrongfully interfering with the record of attendance or means of recording attendance of himself or any other workman.

XXVIII. Conviction by any court of law for any criminal offense involving moral turpitude or otherwise.

XXIX. Doing private or personal work within the establishment with or without tools or material belonging to the establishment, without the previous permission of the Manager.

XXX. Deliberately making false, vicious or malicious statement, public or otherwise to and against the establishment or any member or employee of the establishment if such statement adversely affects the prestige, image or discipline of the establishment.

XXXI. Wilful falsification, defacement or destruction of personal records or record of production or any record of the establishment or connected with the establishment.

XXXII. Submission of wrong information and/or hiding any information about qualification, education, date of birth, experience, wages, perks, benefits, etc. either at the time of applying for employment or thereafter at any time.

XXXIII. Unauthorised possession of any lethal weapon in the establishment.

XXXIV. Stopping own or other's work for any reason or by any means whatsoever or any instigation or abetment thereof.

XXXV. Any false or misleading information and/or statements made on the application form for employment or any other similar document or willfully holding back such information.

XXXVI. Engaging in other employment in any establishment / organization / institution whether for remuneration or not whilst in the employment of the establishment without the prior written permission of the Manager.

XXXVII. Gherao or any other act detaining forcibly or otherwise by any means whatsoever any of the officers of the establishment or staff or workmen or their family members in or outside the premises of the establishment, preventing supervisory or other personnel from doing any work allotted as per the instructions therefor.

XXXVIII. Preventing or causing to prevent the movement of material, goods, vehicle , personnel, visitors etc. from/to the establishment, whether such act is committed within the establishment or outside.

XXXIX. Deliberate abuse of any leave ,privileges/concessions/benefits given by the establishment for the time being in force,

XL. Sudden stoppage of work without sufficient or reasonable cause or any instigation or abetment thereof.

XLI. Hiding or attempting to hide any article or material of the establishment or of the any employee with ulterior motive,

XLII. Failure to report immediately any information, defect or occurrence which a workmen may notice in any machine/s, tool/s and/or equipment which might endanger himself or any other person or might result in damage to the establishment's or any other person's property or endanger anyone's life.

XLIII. Making/giving false statement to supervisor pertaining to his work or otherwise or forging signatures of superiors/colleagues/subordinates etc.

XLIV. Misuse of concession in the allotment of a scooter/rickshaw/motor cycle etc. allotted to a workman on priority basis by the establishment.

XLV. Writing to any person (including any employee) or to public papers, journals etc., any defamatory matter or disclosing trade secrets/ information of the establishment detrimental to the interest of the establishment.

XLVI. Unauthorised occupation/ use of the establishment's premise or premises taken on hire by the establishment, land or any part of the colony for residential or other purpose or refusal to vacate such premises when asked to do.

XLVII. Failure to fill in the production / job card as may be prescribed or refusal to give information or wrongly giving information, pertaining to his work/production as and when asked by superiors.

XLVIII. Refusal to be searched by security staff or the watch & ward staff.

XLIX. Reading news papers, pamphlets, magazines during working hours, or loitering during working hours or remaining within the establishment after the authorised hours of work of respective workman without permission of Manager or Superior.

XLX. Leaving place of work before the schedule time without the prior permission of Manager or Superior.

XLXI. Over speeding the vehicle belonging to the company in contravention to the rules made by company and /or provisions of the Motor Vehicles Act.

XLXII. Impolite and discourteous behaviour towards superiors, customers, visitors and others.

XLXIII. Refusal to accept a transfer from one shift/ job/ department/ division/ plant to another. Refusal to work on weekly-off and observe substituted off fixed by the Manager.

Explanation:

I. The above instances of misconduct are illustrative in nature and not exhaustive. Any other act or omission or behaviour of any workman which amounts to misconduct, as per the ordinary meaning of the term read in conjunction with the aforementioned misconducts, shall also be considered as misconduct for the purpose of this Standing Orders.

II. No act of misconduct which is committed on less than three occasions within a period of one year shall be treated as habitual.

32. Punishments :-

1. A workman guilty of a misconduct may be -

A. Warned or censured, or

B. Fined, subject to and in accordance with the provisions of The Payment of Wages Act, 1936, or

C. Suspended without wages and allowances by an order in writing signed by the Manager for a period not exceeding fifteen days, or

D. Dealt with by withholding /stoppage of annual increment, or promotion, or

E. Demoted to a lower grade or lower pay scale in same grade or otherwise, either permanently or for a specified duration, or

F. Dismissed / discharged without notice.

2. No order under clause (B) to (E) of Standing Order 32 (1) shall be made unless the workman concerned has been informed in writing of the alleged misconduct and given an opportunity to explain the circumstances alleged against him.

3. If a workman refuses to accept a notice, charge sheet, order or other communication served in accordance with these Standing Orders, and provided that he has been asked to accept such document in the presence of atleast two witnesses, he shall be told verbally the

time and place at which the enquiry into his alleged misconduct is to be held or informed by registered post, if necessary. If he refuses or fails to attend at that time, the enquiry shall be conducted ex-parte and decision arriving out of that shall be binding upon the workman. The punishment awarded shall take account of misconduct under Standing Order 31 thus committed.

4. In awarding the punishment under this Standing Order, the Manager shall take into account the gravity of the misconduct, the previous record, if any, of the workman and any other extenuating or aggravating circumstances that may exist.

33. Enquiry Procedure, Subsistence Allowance, Misdemeanors & Punishment etc.

A. I. No order of dismissal/discharge under clause (F) of Standing Order 32 shall be made except after holding an enquiry against the workman concerned in respect of the alleged misconduct in the manner set forth in clause 33 A (II).

II). A workman against whom an enquiry is proposed to be held shall be given a charge-sheet, before taking any action against the workman, clearly setting forth the circumstances appearing against him and requiring his explanation. The workman shall, on being served with the charge sheet, send an explanation to the Manager within the time limit specified in the charge sheet. The Marathi translation of the charge-sheet may be supplied to the charge-sheeted workman, if he so desires. He shall be afforded reasonable opportunity for explaining and defending his own case or shall be permitted to be defended by a co-workman working in the same department as himself or by any office bearer of trade union of which he is a member. No practicing advocate will however, be permitted to defend a workman, unless the establishment is also represented by a legal practitioner at such an enquiry. Except for reasons to be recorded in writing by the officer holding the enquiry, the workman shall be permitted to produce witnesses in his defence and cross-examine any witness on whose evidence the charge rests.

III. A concise summary of the evidence led on either side and the workman's plea shall be recorded.

IV. All proceedings of the enquiry shall be conducted in English, Hindi or Marathi according to the choice of the workman concerned and also the convenience of the establishment.

V. Enquiries relating to alleged acts of misconduct on the part of several workmen may be held together, if in the opinion of the management, it is convenient to do so.

VI. The enquiry shall be normally completed within a period of three months from the date it has commenced. Provided that the period of three months may, for reasons to be recorded in writing, be extended to such further period as may be deemed necessary by the Enquiry Officer.

VII. Where a workman is apprehended committing acts like, theft, arson, deliberate damage to plant and property, riotous or disorderly and /or violent behavior, carrying dangerous weapons or where it is not considered desirable that he should remain on duty, the workman may be kept under suspension pending enquiry.

VIII. A workman against whom any action is proposed to be taken may be suspended pending enquiry. The order of suspension shall take effect immediately on its communication to the workman.

IX. The suspended workman shall not during the period of suspension enter the establishment except with the special permission of the Manager.

X. The Manager may require a workman to present himself at the specified timings at the main entrance of the establishment daily during the period of suspension.

XI. The subsistence allowance will be paid only on the basis of workman's attendance at the main entrance of the establishment during the period of suspension.

B. Subsistence Allowance :

Subject to the provisions of The Payment of Wages Act,1936, a workman who is placed under suspension shall, during the period of such suspension be paid a subsistence allowance at the following rates namely :

I. For the first ninety days of the suspension period (excluding weekly-off days), subsistence allowance to be paid per month shall be equal to half, (i.e. 50%), of basic wages and dearness allowance.

II. If the enquiry gets prolonged and the workman continues to be under suspension for a period exceeding ninety days, the subsistence allowance to be paid per month for a further period of ninety days shall be equal to three-fourth, (i.e. 75%), of such basic wages and dearness allowance.

III. If the enquiry is not completed within a period of 180 days the workman shall be paid wages and dearness allowance in full, (i.e. 100%), as subsistence allowance, to be paid per month until such time as the enquiry is finally concluded.

Provided that, where the findings of the enquiry officer show that such enquiry is prolonged beyond a period of 90 days or as the case may be 180 days at the request of the workman or his authorised representatives or for reasons directly attributable to the workman, the subsistence allowance to be paid per month for period exceeding 90 days or, as the case may be 180 days, shall be reduced and limited to half of such basic wages and dearness allowance.

IV. If as a result of the enquiry held or explanation tendered, it is decided not to take any action against the workman, the workman shall be deemed to have been on duty and shall be entitled to full wages and dearness allowance minus such subsistence allowance as he may have already drawn and all other privileges for the full period of suspension.

V. The payment of subsistence allowance under sub-clause (B) shall be subject to the workman concerned not taking up any employment anywhere else during the period of suspension.

C. Misdemeanors / Punishments :-

A workman may be warned, censured or suspended without wages and allowances for a period not exceeding 7 days or subject to and in accordance with the provisions of the Payment of Wages Act, 1936, fined for any of the following acts and omissions :

I. Absence without leave or without sufficient cause from the appointed place of work.

II. Late attendance

III. Negligence in work.

IV. Neglect of work.

V. Entering or leaving or attempting to enter or leave the premises of the establishment except by the gates or entrance appointed.

VI. Committing nuisance on the premises of the establishment.

VII. Breach of any rule or instruction of maintenance, record keeping or filling up formats or self inspection or running of any department.

VIII. Not reporting for duty in company uniform or not wearing uniform during working hours.

IX. Not commencing work at the official time or stopping work before the official finishing time unless permission or instructions to cease work earlier have been given.

X. Reading magazine, news paper or engaging in personal work during working hours.

XI. Not parking the two wheeler, cycle etc. at the specified locations.

XII. Not wearing safety shoes/gadgets/equipments during working hours.

XIII. Failure to notify the establishment of any change in the residential address.

XIV. Obtaining/attempting to obtain leave of absence under false pretexts.

XV. Entering other department or shops, otherwise than in the course of duty, without prior permission of the superior.

XVI. Deliberately punching or, attempting to punch the attendance card of another workman or otherwise marking /trying to mark his attendance.

XVII. Not following the timings specified for tea,lunch etc, and not following the general rules laid down for canteen, transport and house keeping.

XVIII. Refusal to accept job rotation as per the requirement of the establishment.

XIX. Remaining absent in the training programmes or deliberately avoiding to attend training programmes and other group activities except with the previous permission of the Manager.

XX. Misuse or unauthorised use of company's telephone, fax, e-mail, photocopier, computer or any other equipment including company vehicle.

34. Redressal of Grievances :-

I. Any workman desirous of the redressal of grievance arising out of his employment or relating to unfair treatment or wrongful exaction on the part of a superior shall either himself or through a trade union of which he is a member, submit a complaint to the Manager or any officer appointed by the Manager in this behalf.

II. The Manager or any such officer shall investigate the complaint at such times and places as he may appoint. The workman and,

A. any other workman of his choice, or

B. Where the complaint is made through a trade union, a member of the union shall have the right to be present at such investigation. Where the complaint alleges unfair treatment or wrongful exaction on the part of a superior , a copy of order finally made by the Manager shall be supplied to the complainant if he asks for one. In other cases the decision of the Investigating Officer and the action, if any, taken thereon by the Manager shall be intimated to the complainant.

Provided that complaints relating to assault or abuse by any person holding a supervisory position or refusal of an application for urgent leave shall be enquired into as early as possible by the Manager or such other officer or officers as he may appoint.

The decision of the Manager upon any question arising out of, in connection with, or incidental to these Standing Orders shall be subject to an appeal to the Occupier of the establishment/factory.

35. Service Certificate :

Every workman other than a casual / temporary workman who leaves service or retires or is dismissed or discharged shall, without avoidable delay, be given a Service Certificate if he asks for one.

36. Notices :-

A. Notice to be exhibited or given under these Standing Orders shall be in English and also in Marathi wherever deemed necessary.

B.(1). Any notice, order, charge-sheet, communication or intimation which is personal, i.e. is meant for an individual workman and is given in writing under these Standing Orders shall be in English.

(2) Before such a notice, order, charge-sheet, communication or intimation is handed over to the workman, it shall be read out and explained to him if he so desires.

37. Nothing contained in these Standing Orders shall operate in derogation of any law for the time being in force or to the prejudice of any right under a contract or service, custom or usage or an agreement, settlement or award applicable to the establishment.

38. If there is any conflict of meaning between the Standing Orders in English and in the regional language viz. Marathi, the English version of these Standing Orders as certified by the Certifying Officer shall be deemed to be authentic and final.

Certified by me this on Friday the 14th September 2001.

Sd/-

(Ramchandra Patil)
Addl. Commissioner of Labour, Pune
Division, Pune, and
Certifying Officer under the Industrial
Employment (Standing Orders) Act, 1946,
Pune.